

Ram Prasad v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 12 May 2023 · 2023:AHC:102862-DB · WRIT - C No. 14838 of 2023 · **Petition disposed; demand withdrawn; fresh Supply Code proceedings allowed**

HEADNOTE

A demand notice for theft dues, and the provisional assessment that fixed no date of hearing, were withdrawn by the licensee. The writ was disposed of with liberty to proceed afresh strictly under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ram Prasad challenged, before the Allahabad High Court, a demand notice dated 24 January 2023 issued by Paschimanchal Vidyut Vitran Nigam Limited for recovery of electricity dues alleged in a theft case. On 2 May 2023 the licensee's counsel sought time for instructions, and the Court restrained coercive action on the recovery. On 12 May 2023 the licensee stated that the provisional assessment had fixed no date of hearing and that both that notice and the demand notice had been withdrawn.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

theft provisional assessment and demand

HOLDING

Where the licensee withdraws a provisional assessment in a theft case because it fixed no date of hearing, and also withdraws the demand notice raised on it, the writ challenging that demand is disposed of, with liberty to the licensee to proceed afresh strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1-3

FLAG The order cites the U.P. Electricity Supply Code, 2005 without a clause number; 'procedure' is the order's word, not a numbered clause.

PRINCIPLE TAGS

fresh-proceedings-under-supply-code After the licensee withdrew the hearing-less provisional assessment and the theft demand, the Court disposed of the writ and left any fresh recovery to the procedure in the U.P. Electricity Supply Code, 2005. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD COMMITTED THEFT OF ELECTRICITY AND WHAT SUM, IF ANY, IS RECOVERABLE.

Left open for a fresh proceeding after withdrawal of the provisional assessment and the demand notice. ¶ 2-3